

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBC055380: C & C PACKAGING, INC., A CALIFORNIA CORPORATION vs
AVINA PRODUCE, INC., A CALIFORNIA CORPORATION, et al.**

**09/02/2026 in Department 40
Motion to Amend Judgment**

Motion: Plaintiff C & C Packaging, Inc.'s Motion to Amend Judgment Nunc Pro Tunc to Correct The Total Amount Errantly Calculated On Judgment Entered and To Correct The Name of Judgment Debtor Jesus M. Espinoza (*unopposed*).

Tentative Ruling:

Plaintiff C & C Packaging, Inc.'s Motion to Amend Judgment Nunc Pro Tunc to Correct The Total Amount Errantly Calculated On Judgment Entered and To Correct The Name of Judgment Debtor Jesus M. Espinoza is GRANTED in part and DENIED in part. The clerical correction shall be made and Plaintiff shall submit an amended judgment (so titled) forthwith. The request to amend the judgment to reflect a different name for the judgment debtor is not a clerical correction and is not authorized under the statute cited (CCP 473). Plaintiff must give proper notice of the authority pursuant to which it seeks to amend the name of the judgment debtor. That request is denied without prejudice.

Plaintiff to provide notice.

Background:

On February 23, 2026, the Court entered the default of Defendants.

On July 22, 2026, the Court entered Default Judgment in favor of Plaintiff against Defendants for a total of \$95,503.79, comprised of \$75,580.74 damages, \$19,423.72 prejudgment interest at a rate of 10%, \$1,600 attorney's fees and \$899.31 in costs.

Grounds: Plaintiff moves the Court for an order amending the judgment nunc pro tunc pursuant to Code of Civil Procedure section 473, subdivision (d), to (1) correct the amount of judgment that was calculated in error, and (2) reflect the true and correct name of Defendant/Judgment Debtor Jesus Espinoza Montejano aka Jesus M. Espinoza. The correct amount of judgment should be \$97,503.79. Plaintiff asserts the mistake was due to counsel's arithmetical error and further research revealed that the true name of judgment debtor Jesus M. Espinoza is Jesus Espinoza Montejano.

Discussion:

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

“The function of a nunc pro tunc order is merely to correct the record of the judgment and not to alter the judgment actually rendered—not to make an order now for then, but to enter now for then an order previously made. The question presented to the court on a hearing of a motion for a nunc pro tunc order is: What order was in fact made at the time by the trial judge? [Citation.] ... [N]unc pro tunc orders may not be made to ‘make the judgment express anything not embraced in the court's decision, even though the proposed amendment contains matters which ought to have been so pronounced. [Citations.] [Citation]. It is only when the form of the judgment fails to coincide with the substance thereof, as intended at the time of the rendition of the judgment, that it can be reached by a corrective nunc pro tunc order. [Citations.]” (*APRI Ins. Co. v. Superior Court (Schattenman)* (1999) 76 CA4th 176, 185, internal quotations omitted.)

Plaintiff requests that the Court enter the “correct” amount of the judgment and urges that the amount currently in the judgment was a mistake due to Plaintiff’s counsel’s calculation error. In *McLellan v. McLellan* (1972) 23 Cal.App.3d 343, 358, a calculation error due to the inadvertent omission of costs was considered a clerical error that could be corrected.

Here, a default judgment totaling \$95,503.79 was entered by the Court on July 22, 2026. The amount was comprised of \$75,580.74 damages, \$19,423.72 prejudgment interest, \$1,600 attorney’s fees and \$899.31 in costs. Plaintiff asserts that the correct amount should be \$97,503.79, using the same breakdown as before. (Berke Dec., Ex. B.) The Court agrees. The request to amend the amount of the judgment is granted.

Plaintiff also requests that the Court amend the judgment to change the name of Defendant/Judgment-Debtor Jesus M. Espinoza to Jesus Espinoza Montejano. The declaration of Michael N. Berke states: “Upon further investigation and review of pursuing enforcement of the Judgment against Judgment Debtors, I learned that Defendant, Judgment Debtor, JESUS M. ESPINOZA, maintains a deed listed in his entire name as Jesus Espinoza Montejano. Based on all of the information I have reviewed in the course of working on this matter, I have concluded that the correct Judgment Debtor’s true name is JESUS ESPINOZA MONTEJANO aka JESUS M. ESPINOZA. A copy of said deed is attached hereto marked as Exhibit “C” and incorporated herein.” (Berke Dec., ¶ 4.)

The request to amend the judgment to change the judgment debtor’s name is not properly noticed. Such a correction cannot be made under CCP 473 because it is not a clerical correction – it is a new name by which Plaintiff seeks to hold the judgment debtor accountable. This is not the proper motion for that type of relief.